

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

CG7285

AUGUSTO PEREZ, CHARLIE
LACOTERA, RICARDO PEREZ and
JHEXON CRUZ,

Plaintiffs,

-against-

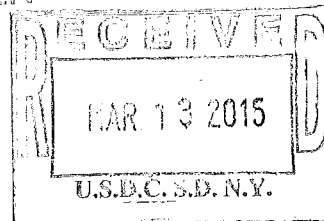
THE CITY OF NEW YORK, P.O. SEAN
BURNS, P.O. MICHAEL MORRIN, P.O.
DELORES MITCHELL and P.O.s "JOHN
DOE" #1-5 (said names being fictitious, as
the true names are presently unknown),
Individually and in their Official
Capacities.

Defendants.

15 CV 1913

COMPLAINT
AND DEMAND FOR
JURY TRIAL

CV _____



Plaintiffs AUGUSTO PEREZ, CHARLIE LACOTERA, RICARDO PEREZ and
JHEXON CRUZ by their attorneys MYERS, SINGER & GALIARDO, LLP,
complaining of the Defendants, respectfully allege as follows:

PRELIMINARY STATEMENT

1. Plaintiffs bring this action for compensatory damages, punitive damages and attorney's fees pursuant to 42 U.S.C. §§ 1983, 1988, for the wrongful acts of Defendants THE CITY OF NEW YORK, P.O. SEAN BURNS, P.O. MICHAEL MORRIN, P.O. DELORES MITCHELL and P.O.s "JOHN DOE" #1-5 (said names being fictitious, as the true names are presently unknown), as Officers of the New York City Police Department, all acting under color of state law and pursuant to their authority, in violation of Plaintiffs' rights, as said rights are secured by said statutes and the Constitutions of the State of New York and the United States.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. §§ 1983, 1988, and the Fourth, Fifth, Eighth and Fourteenth Amendments to the United States Constitution.
3. Jurisdiction is invoked herein pursuant to the aforementioned statutory and constitutional provisions and pursuant to 28 U.S.C. §§ 1331, 1343, this being an action seeking redress for the violation of Plaintiffs' constitutional and civil rights.

VENUE

4. Venue is properly laid in this District under 28 U.S.C. § 1391(b), this being the District in which the claim arose.

TRIAL BY JURY

5. Plaintiffs demand a trial by jury on each and every one of their claims as pled herein pursuant to Fed. R. Civ. P. 38(b).

PARTIES

6. At all times relevant hereto, plaintiffs were and are residents of North Bergen, New Jersey.
7. At all times relevant hereto, defendant THE CITY OF NEW YORK (hereinafter, "NYC") is a municipality of the State of New York and owns, operates, manages, directs and controls the New York City Police Department, which employs the other named defendants.
8. At all times relevant to this action, defendants P.O. SEAN BURNS, P.O. MICHAEL MORRIN, P.O. DELORES MITCHELL and P.O.s "JOHN DOE" #1-5 (said names

being fictitious, as the true names are presently unknown), are and were police officers employed by the New York City Police Department (hereinafter, "NYPD"), acting under color of state law. They are being sued in both their individual and official capacities.

9. At all times relevant hereto and in all their actions described herein, said Defendants were acting under color of the statutes, ordinances, regulations, policies, customs and usages of the NYPD and NYC, pursuant to their authority as employees, servants and agents of the NYPD within the scope of employment and incidental to their otherwise lawful duties and functions as employees, servants, agents and police officers.

10. NYC was responsible for the hiring, training, supervision, discipline, retention and promotion of the police officers, sergeants, and/or employees of the NYPD.

FACTS

11. On July 21, 2012, at approximately 4:00 a.m., plaintiffs were in a Honda motor vehicle driving on West 39th Street, New York, New York, toward the Lincoln Tunnel to return to home to New Jersey after an evening spent in Manhattan.

12. As plaintiff AUGUSTO PEREZ was driving the motor vehicle lawfully upon West 39th Street, defendant police officers entered the roadway and commanded him to stop his vehicle in the middle of the road. Plaintiff complied.

13. The defendant officers approached the vehicle. Plaintiff AUGUSTO PEREZ asked why he was being stopped. One of the defendant officers told him it was for failing to wear a seat belt, despite the fact that plaintiff was wearing a seatbelt.

14. Thereafter, the police officers opened the doors to the Honda and began to forcibly remove plaintiffs AUGUSTO PEREZ, RICARDO PEREZ and JHEXON CRUZ from the automobile.

15. Without reason or probable cause, one of the defendant officers immediately handcuffed plaintiff AUGUSTO PEREZ. During the course of taking plaintiff into custody, one defendant officer punched plaintiff in the ribs.

16. The defendant officers told plaintiffs RICARDO PEREZ and JHEXON CRUZ to move to the sidewalk.

17. Plaintiff CHARLIE LACOTERA remained seated in the rear passenger seat. He questioned the police actions, asking, "why are you doing that to my friends?" One of the defendant officers then accused plaintiff CHARLIE LACOTERA of being a "wise guy" and forcibly removed him from the car.

18. Without probable cause or justification, several officers then threw plaintiff CHARLIE LACOTERA to the ground. As they forcibly took him into custody, the officer(s) repeatedly punched plaintiff in the sides and back.

19. Plaintiff JHEXON CRUZ pulled out his cellphone and began to record the defendant officers as they were manhandling and/or punching plaintiff CHARLIE LACOTERA.

20. A defendant officer quickly approached plaintiff JHEXON CRUZ and attempted to prevent him from filming the assault, first pushing plaintiff backward and then standing in front of him to prevent the filming.

21. Thereafter, one of the defendant officers seized plaintiff JHEXON CRUZ's phone and threw it to the ground, smashing it. The officer mocked plaintiff JHEXON CRUZ, stating, "who are you, a fucking camera man?! What is this, TMZ?"

22. After the police officers had finished taking AUGUSTO PEREZ and CHARLIE LACOTERA into custody, without explanation, cause or justification they also took JHEXON CRUZ and RICARDO PEREZ into custody.

23. The plaintiffs were all handcuffed and taken to the precinct. They repeatedly asked what they were being charged with, but were not told by the defendant police officers.

24. While in custody, a police officer took hold of plaintiff AUGUSTO PEREZ and struck his face on a gate, causing a laceration and bleeding to the bridge of his nose.

25. At a defendant's request, plaintiff AUGUSTO PEREZ voluntarily submitted to a chemical test analysis. A blood sample, which was taken more than (2) hours after the arrest and which was therefore neither scientifically relevant nor legally admissible, purportedly indicated a blood alcohol level of .113 or one per centum by weight of alcohol in his blood. Plaintiff AUGUSTO PEREZ was charged with Driving While Intoxicated (DWI) pursuant to VTL 1192.

26. Later, the defendant police officers filed false and misleading reports to support the arrest charges, including the false allegation(s) that plaintiffs CHARLIE LACOTERA, RICARDO PEREZ and JHEXON CRUZ had committed, upon information and belief, the crimes of Disorderly Conduct (PL 240.20) and/or Obstruction of Governmental Administration (PL 195.05).

27. The plaintiffs were transported to the Criminal Court of the City of New York, County of New York. On July 22, 2012, after nearly 48 hours of incarceration, plaintiffs were arraigned.

28. Plaintiff AUGUSTO PEREZ was arraigned under Docket Numbered 2012NY056733 and released on his own recognizance, where after he fought the DWI charges.

29. Plaintiff CHARLIE LACOTERA was arraigned and resolved his case with a reduced offer to an Adjournment Contemplating Dismissal (ACD) and/or a disorderly conduct ("discon"). He was released from custody.

30. Plaintiff RICARDO PEREZ was arraigned and the charges against him were dismissed, either conditionally (ACD) or otherwise. He was released from custody.

31. Plaintiff JHEXON CRUZ was arraigned and the charges against him were dismissed, either conditionally (ACD) or otherwise. At that time, an old administrative warrant was located which placed a "hold" plaintiff JHEXON CRUZ and detained him while it was resolved. He spent approximately thirty (30) days in custody before being released.

32. Plaintiff AUGUSTO PEREZ remained at liberty during the pendency of the criminal charges. He made approximately eight (8) court appearances over a period of more than one (1) year while fighting the charges against him. All the charges against plaintiff AUGUSTO PEREZ were dismissed and sealed on October 8, 2013.

**FIRST CLAIM FOR RELIEF:
DEPRIVATION OF FEDERAL CIVIL RIGHTS**

33. Plaintiffs repeat, reiterate and re-allege each and every allegation contained in paragraphs 1 through 32 with the same force and effect as if fully set forth herein.

34. All of the aforementioned acts of Defendants, their agents, servants and employees were carried out under color of state law,

35. All of the aforementioned acts deprived Plaintiffs of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States and in violation of 42 U.S.C. § 1983.

36. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers, with the entire actual and/or apparent authority attendant thereto.

37. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and rules of NYC and the NYPD, all under the supervision of ranking officers of said department.

38. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of his/her respective municipality/authority, which is forbidden by the Constitution of the United States.

39. By these actions, these Defendants have deprived Plaintiff of rights secured by the Fourth, Fifth, Eighth and Fourteenth Amendments to the United States Constitution, in violation of 42 U.S.C. § 1983, for which the Defendants are individually liable.

**SECOND CLAIM FOR RELIEF:
CONSPIRACY TO VIOLATE CIVIL RIGHTS**

40. Plaintiffs repeat, reiterate and re-allege each and every allegation contained in paragraphs 1 through 39 with the same force and effect as if fully set forth herein.

41. All of the aforementioned Defendants conspired to violate Plaintiffs' civil rights by agreeing among themselves to falsely charge Plaintiffs with crimes and testify falsely, as described above, in violation of 42 U.S.C. § 1985, for which the Defendants are individually liable.

**THIRD CLAIM FOR RELIEF:
FALSE AREST UNDER 42 U.S.C 1983**

42. Plaintiffs repeat, reiterate and re-allege each and every allegation contained in paragraphs 1 through 41 with the same force and effect as if fully set forth herein.

43. As a result of defendants' aforementioned conduct, Plaintiffs were subject to an illegal, improper and false arrest by the Defendants and taken into custody and caused to be falsely imprisoned, detained, confined, incarcerated and prosecuted by the Defendants in criminal proceedings, without any probable cause, privilege or consent.

44. As a result of the foregoing, Plaintiffs' liberty was restricted for an extended period of time, and they were put in fear for their safety and subjected to handcuffing, and other physical restraints, without probable cause.

45. As a result of their false arrest, Plaintiffs were subjected to humiliation, ridicule and disgrace. Plaintiffs were discredited in the minds of members of the community.

**FOURTH CLAIM FOR RELIEF:
MALICIOUS ABUSE OF PROCESS UNDER 42 U.S.C. 1983**

46. Plaintiffs repeat, reiterate and re-allege each and every allegation contained in paragraphs 1 through 45 with the same force and effect as if fully set forth herein.

47. Defendants issued legal process to place Plaintiffs under arrest.

48. Defendants arrested Plaintiffs in order to obtain a collateral objective outside the legitimate ends of the legal process.

49. Defendants acted with intent to do harm to Plaintiffs without excuse or justification.

**FIFTH CLAIM FOR RELIEF:
EXCESSIVE FORCE UNDER 42 U.S.C. 1983**

50. Plaintiffs AUGUSTO PEREZ and CHARLIE LACOTERA repeat, reiterate and re-allege each and every allegation contained in paragraphs 1 through 49 with the same force and effect as if fully set forth herein.

51. The degree of force used by Defendants was excessive, unreasonable and unwarranted.

52. Defendants' actions were intentional, willful, malicious, egregious, grossly reckless and negligent, unconscionable and unprovoked.

53. As a result of the excessive force and brutality, Plaintiff sustained substantial pain, bruising and swelling about his body, requiring medical treatment.

54. All of the aforementioned acts of Defendants constituted excessive force under the laws of the State of New York and they are liable for said damage.

**SIXTH CLAIM FOR RELIEF:
MUNICIPAL LIABILITY**

55. Plaintiff repeat, reiterate and re-allege each and every allegation contained in paragraphs 1 through 54 with the same force and effect as if fully set forth herein.

56. Defendant police officers P.O. SEAN BURNS, P.O. MICHAEL MORRIN, P.O. DELORES MITCHELL and P.O.s "JOHN DOE" #1-5 (said names being fictitious, as the true names are presently unknown), arrested plaintiffs despite a complete lack of evidence against them, notwithstanding their knowledge that an arrest would jeopardize Plaintiffs' liberty, well-being, safety and constitutional rights.

57. The acts complained of were carried out by the individual defendants in their official capacities as police officers, with the actual and/or apparent authority attendant thereto.

58. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and officials pursuant to the customs, policies, usages, practices, procedures and rules of NYC and the NYPD, all under the supervision of ranking officers of said department.

59. The aforementioned customs, policies, usages, practices, procedures and rules of NYC and the NYPD included, but were no limited to, initiating and continuing criminal proceedings without evidence of criminal activity.

60. The foregoing customs, policies, usages, practices, procedures and rules of NYC and the NYPD constituted a deliberate indifference to the safety, well-being and constitutional rights of Plaintiffs.

61. The foregoing customs, policies, usages, practices, procedures and rules of NYC and the NYPD were the direct and proximate cause of the constitutional violations suffered by Plaintiffs as alleged herein.

62. The foregoing customs, policies, usages, practices, procedures and rules of NYC and the NYPD were the moving force behind the constitutional violation suffered by Plaintiffs as alleged herein.

63. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the constitutional rights of Plaintiffs.

64. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of Plaintiffs' constitutional rights.

65. Defendant NYC, as municipal policymaker in the training and supervision of Defendant police officers, have pursued a policy and custom of deliberate indifference to the rights of persons in their domain who suffer violation of their right to freedom from the use of excessive and unreasonable force and freedom from deprivation of Liberty without Due Process of law in violation of the Fourth, Fifth, and Fourteenth Amendments

to the Constitution of the United States and 42 U.S.C. § 1983, and the Constitution and laws of the State of New York.

66. All of the foregoing acts by Defendants deprived Plaintiffs of federally protected rights, including, but not limited to, the right:

- a. Not to be deprived of liberty without due process of law;
- b. To be free from seizure and arrest not based upon probable cause;
- c. To be free from unlawful imprisonment;
- d. To be free from unwarranted and malicious criminal prosecution;
- e. To be free from intentional assault and infliction of emotional distress;
- f. Not to have cruel and unusual punishment imposed upon him; and
- g. To receive equal protection under the law.

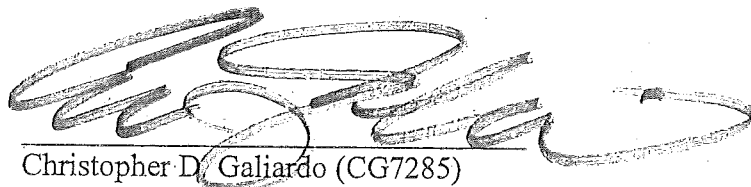
PRAYERS FOR RELIEF

WHEREFORE, each and every Plaintiff herein demands judgment and prays for the following relief, jointly and severally, against the Defendants:

1. Special and compensatory damages in the amount of ONE MILLION (\$1,000,000.00) DOLLARS.
2. Punitive damages in the amount of FIVE HUNDRED THOUSAND (\$500,000.00) DOLLARS.
3. Reasonable attorney's fees and costs; and
4. Such other and further relief as this Court seems just and proper.

DATED: New York, New York
March __, 2015

Respectfully submitted,

A handwritten signature in dark ink, appearing to read "Christopher D. Galiardo", written over a horizontal line.

Christopher D. Galiardo (CG7285)

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UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

AUGUSTO PEREZ, CHARLIE LACOTERA, RICARDO PEREZ
JHEXON CRUZ,

Plaintiff,

-against-

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P.O. DELORES MICHELL and P.O.s "JOHN DOE">#1-5
(said names being fictitious, as the true names are presently unknown), Individually
And in their Official Capacities.

Defendants,

COMPLAINT AND DEMAND FOR JURY TRIAL

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